

		All time sought was not reasonably expended, however. The court reduces the fee award by \$690.00 for the following time entries that are reflective of unreasonably incurred fees or for clerical tasks that are typically subsumed in overhead: 03/17/25 (0.1); 03/26/25 (0.5); 04/01/25 (0.1); 04/29/25 (0.1); 08/13/25 (0.1); 08/13/25 (0.1); 08/14/25 (0.1); 08/14/25 (0.1); 08/15/25 (0.1); 06/04/26 (0.3); 07/13/26 (0.1); 08/06/26 (0.3); 08/13/26 (0.1); and 11/13/26 (0.1 [anticipated].). The court therefore will deduct a total of \$690.00 from the request of \$17,100.00, which leads to a lodestar \$16,410.00. The court does not find any circumstances that warrant adjustment, either upward or downward. <u>Costs and Expenses:</u> Plaintiffs seek a total of \$1,763.36 in costs and expenses. Under Civil Code section 1794, subdivision (d), as the prevailing party, Plaintiffs are entitled to all "costs and expenses" that were reasonably incurred in prosecuting the case, including items beyond the statutory costs enumerated in Code of Civil Procedure section 1033.5. (<i>Jensen v. BMW of North Am.</i> (1995) 35 Cal.App.4th 112, 137-138.) Defendant does not dispute the reasonableness of the costs and expenses Plaintiffs identified. The court finds all such costs and expenses to be reasonable and to award costs in the requested amount of \$1,763.36. <u>Total Award:</u> When the amount of fees awarded (\$16,410.00) is added to the costs and expenses awarded (\$1,763.36) the total award is \$18,173.36. Based on the foregoing, the motion for attorney fees, costs, and expenses is GRANTED, and Plaintiffs are awarded a total of \$18,173.36 against Defendant. Plaintiffs' counsel is ordered to give notice of this ruling.
12.	Sams vs. Castillo 2026-01537470	Before the court is the amended petition for decedent's cremated remains filed by petitioner Michele Sams (Petitioner) on February 17, 2026. Petitioner filed the original petition commencing these proceedings on January 2, 2026. By the petition, Petitioner seeks a court order regarding the disposition of the remains of her alleged biological father, Billy Joe Hill (Decedent). Petitioner alleges respondent Lindsie Castillo (Respondent) also is a biological daughter of Decedent, and Respondent currently has possession of Decedent's cremated remains. Specifically, Petitioner seeks a court order (1) determining Petitioner has an equal right to the disposition of Decedent's remains and possession of

		one-half of Decedent's remains, (2) ordering Respondent to release one-half of Decedent's remains to Petitioner within 30 days, and (3) awarding Petitioner \$1,000. This is the third hearing on Petitioner's amended petition. The court previously held hearings on April 9, 2026, and May 14, 2026. The court continued each of those hearings because Petitioner failed to file a proof of service showing Petitioner had served Respondent with any of the documents filed in this case. The court also indicated Petitioner failed to provide any authority authorizing the relief she seeks. The court encouraged Petitioner to seek legal counsel to assist in ensuring Respondent is properly served and in finding legal authority to authorizing the relief requested. On July 7, 2026, Petitioner filed a proof of service stating a registered process server served Respondent with the Summons, Civil Case Coversheet, Amended CM-010 Civil Case Coversheet, and Sum-100 Amended Summons on June 1, 2026. The proof of service, however, fails to show Respondent was served either the original or amended petition in this case or with notice of today's hearing. Moreover, Petitioner has not identified any authority that would warrant granting the relief requested. Although Health & Safety Code Section 7100 states the children of the deceased have a right to the ashes, it does not provide authority for the court to order division of the ashes after they have been distributed to one child. Petitioner cites no other authority in support of her assertion the remains should be divided. Assertions unsupported by legal authority are presumed to lack merit. (<i>Atchley v. City of Fresno</i> (1984) 151 Cal.App.3d 635.) Furthermore, there also is no evidence to show Respondent actually has the cremated remains or how she allegedly obtained those remains Petitioner has been provided multiple opportunities to address the foregoing issues, but has failed to do so. Accordingly, the petition is DENIED. The clerk is directed to give notice of this ruling
13.	National Funding, Inc. vs. BGRT, LLC 2019-01084008	Before the court is the hearing on the claim of exemption presented by judgment debtor Charles Harney (Debtor) and the opposition to claim of exemption filed by judgment creditor National Funding, Inc. (Creditor). As set forth more fully below, the court finds the funds in Debtor's Chase Bank account currently being held by the San Diego